

DIRECTOR'S PERSONAL GUARANTEE

In consideration of your making or continuing advances or otherwise giving or continuing credit or accommodation to Hemiwards Investments Limited (Company Reg No. 65928) hereinafter called the Principal, I Henry Ngulube (NRC 175406/65/1) jointly and severally guarantee to you due repayment, within two days after demand, of all moneys which shall at any time be due to you, by the Principal, in any shape or form, together with interest, charges, costs etc.

1. I Henry Ngulube (NRC 175406/65/1) hereby agree to pay the principal sums of ZMW105,000.00 (One Hundred and Five Thousand Kwacha) due to you and interest thereon (to the extent that such interest is not paid by the Principal) from the date of demand until payment on all moneys obligations and liabilities hereby guaranteed (as well as before any demand or judgment or the death bankruptcy, insanity, liquidation or other incapacity of the Principal at the current rate of 10% per month and all fees as agreed in the Loan Offer Letter dated 10th April, 2025 or at such higher rate as may be payable by the Principal compounded and subject to alteration at FUNDIT CAPITAL SOLUTIONS LIMITED discretion and this guarantee shall secure the ultimate balance due to you by the Principal.
2. My liability under this guarantee shall be as that of a Principal debtor and you may at your option hold me primarily responsible for the liabilities of the Principal.
3. This guarantee shall be a continuing security binding on me and my personal representative(s) until receipt by you of written notice of discontinuance thereof and notwithstanding such discontinuance of any release or granting of time or other indulgence by you to any one or more of us, this guarantee shall, remain nevertheless as to the parties giving notice continue to be binding on them and their personal representatives in respect of all instruments, drawn on you or accepted by you, for the benefit of the Principal and purporting to be dated on or before the date of receipt of the notice, through actually paid or honoured after that date.
4. This guarantee is additional and without prejudice to any other guarantee or securities given by me in respect of any indebtedness covered by this guarantee.
5. The guarantee shall not be discharged or prejudiced by any partial payment or by settlement of accounts or the existence of a credit balance of the principal at any time or by discharge of the Principal by operation of law or for any other reason.
6. You may, as you think fit and without reference to me grant the Principal time or other indulgence or make or accept any arrangement or composition with him/her in respect of any indebtedness hereby guaranteed, and also vary, renew, release, realize or in any way deal with any securities or rights now or hereafter held by you in respect of the indebtedness.
7. You may deal with any dividends, partial payments etc., received in respect of the indebtedness hereby guaranteed, and also with any securities held or proceeds thereof as you may deem fit so as to confer on your maximum benefits.
8. In respect of any securities held by you in respect of the indebtedness hereby guaranteed, I shall not do, or cause to be done, anything that will impair their value or, in case of insolvency of the Principal or of a co-surety shall not prove in competition until all the moneys due to you are repaid.

9. Any accounts, settled between you and the Principal, as any statement of the Bank regarding the amount due to you at any time will be accepted by me/as conclusive evidence of the extent of my/our liability under this guarantee.
10. In case of the Principal or ourselves being a firm, any change in constitution shall not affect our liability hereunder.
11. Where the Principal purports to act on behalf of another person or corporation or Company you shall not be bound to enquire into powers of such principal, and all moneys borrowed by him will be covered by his guarantee notwithstanding any absence or insufficiency of, or irregularity, in the exercise of the powers.
12. Any notice by way of demand, request or otherwise hereunder, may be given to me/us or any of us personally or may be left at the last known place of business or residence or may be sent to me/us or any of us by post addressed as aforesaid and if sent by post, it shall be deemed to have been duly given when it would reach me/us in due course of post. If for want of address or otherwise, the notice cannot be given by post, any advertisement in a newspaper shall be deemed sufficient notice given on the day advertisement appears.

Dated this 10TH day of APRIL 2025

For individuals

Signature: 

Date 10/04/2025

Full Name: HENRY NGULUBE

Address: PLOT N° 608 M/W
KITWE

For Witness:

Signature: 

Date 10/04/2025

Full Names: BERNARD MOLOGETI

Address: 742 VANADIUM AV. EAST OF GARNETON, KITWE

In the Presence of a FUNDIT CAPITAL SOLUTIONS LIMITED Employee

Signature: 

Date 10/04/25

Full Names: Paul Kalubela

Address: Plot 12 M/W